

City Council

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Mayor
Carla J. Filkins

Mayor Pro-Tem
Shari Spoelman

Councilmembers
Robert J. Engels
John P. Meinhardt
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RESOLUTION NO. 2017-__

**RESOLUTION OPPOSING THE ISSUANCE OF WEXFORD WATER TECHNOLOGIES'
DRAFT PERMIT NUMBER MI-165-1I-0002 BY THE ENVIRONMENTAL PROTECTION
AGENCY IN THE CITY OF MANTON, COUNTY OF WEXFORD**

At a meeting of the City Council of the City of Cadillac, Wexford County, Michigan, held in the Council Chambers, Cadillac Municipal Complex, 200 North Lake Street, Cadillac, Michigan, on the 20th day of November, 2017, at 6:00 p.m.

PRESENT: _____

ABSENT: _____

The following preamble and resolution was offered by _____ and seconded by _____.

WHEREAS, Wexford Water Technologies, LLC has applied for a permit ("Draft Permit Number MI-165-1I-0002") for a Class I injection well to be located at 990, N. US Highway 131 in the City of Manton in Wexford County for the disposal of contaminated landfill wastewater or leachate from the Wexford County Landfill; and

WHEREAS, the Michigan Department of Environmental Quality ("MDEQ") and the Environmental Protection Agency ("EPA") have received the permit application, are now considering it, and have asked for public comments regarding the Draft Permit Number MI-165-1I-0002; and

WHEREAS, residents of the City of Cadillac community, including residents of the City of Manton, Wexford County and the State of Michigan are exceedingly concerned about potential contamination of groundwater and lakes and rivers due to potential releases of wastewater or leachate to the environment by the injection well, transportation of liquid wastes or operational activities associated with the Class I injection well; and

WHEREAS, the City Council for the City of Cadillac is concerned with the welfare of its residents and the wider community, the quality and reliability of underground water resources, and the protection of the natural resources in the City, County and State that are vital to the growth and economic fortunes of the City and surrounding communities; and

WHEREAS, due to the proximity to and the nature of the water supply and to lakes and rivers in the City and surrounding communities, the disposal of waste water and/or leachate at the City of Manton site has significant potential risk to adversely impact the City's citizens, environment, and economy by contaminating the water supply, and the incredibly valuable and irreplaceable resources of the City, County and State, including the lakes and rivers; and

WHEREAS, superior alternative options are available for the proper treatment and management of contaminated wastewater or leachate from the Wexford County Landfill that do not present the same environmental harms and risks, which include treatment through the City's Industrial Pretreatment Program ("IPP") and treatment and discharge through the City's Water Resource Management Division, including the wastewater treatment plant; and

WHEREAS, the City has been treating leachate from the Wexford County Landfill for both the Wexford County Department of Public Works and American Waste (the current owner of the Wexford County Landfill) for over 20 years; and

WHEREAS, in 2016, the City safely treated and discharged 14 million gallons of leachate and has the ability to safely treat and discharge up to 20 million gallons of leachate annually; and

WHEREAS, the following contaminants treated and removed from the Wexford County Landfill by the City through its IPP and wastewater treatment plant are dangerous and include known carcinogens and contaminates including:

- Cadmium
- Lead
- Nickel
- Chromium
- Arsenic
- Benzene
- Ethylbenzene
- Ammonia
- Silver
- Copper; and
- Toluene

WHEREAS, contaminates are safely removed and clean water is discharged in accordance with EPA and MDEQ prescribed National Pollutants Discharge Elimination System ("NPDES") permit limits; and

WHEREAS, given the above, the City Council for the City of Cadillac finds that the disposal of Wexford County Landfill wastewater or leachate at the City of Manton site: (1) is not necessary, as superior options are available, (2) poses an unnecessary risk to the environment, and (3) poses a significant threat to the citizens of the City of Cadillac, the City of Manton, the County of Wexford and the State of Michigan.

NOW, THEREFORE, the City Council for the City of Cadillac hereby resolves as follows:

1. The City opposes the issuance by the EPA of Water Technologies Draft Permit Number MI-165-1I-0002 to Class I injection well to be located at 990, N. US Highway 131 in the City of Manton in Wexford County for the disposal of contaminated landfill wastewater or leachate from the Wexford County Landfill.
2. The City recommends that the EPA require the applicant to explore and pursue alternative options for the proper treatment and management of contaminated wastewater or leachate, which do not imperil the citizens of the City of Cadillac, environment, economy, water supply, and the irreplaceable lakes and rivers of the City, County and State of Michigan.
3. The City Clerk is directed to submit a copy of this Resolution to Andrew Greenhagen, US EPA Water Division, UIC Branch (WU-16J), 77 W. Jackson

Blvd., Chicago, IL, 60604-3590 to be duly filed and considered as official comment by the City of Cadillac as part of the EPA written comment period, with copies to be directed to: Michigan Governor Rick Snyder; Michigan Attorney General Bill Schutte; Michigan United States Senators Debbie Stabenow and Gary Peters; US House Representative John Moolenaar; Michigan State Senator Darwin Boocher; Michigan State Representative Michele Hoytenga; the Michigan Department of Environmental Quality, and Manton Mayor, Gary Brown.

4. Any and all resolutions that are in conflict with this Resolution are hereby repealed to the extent necessary to give this Resolution full force and effect.

YEAS: _____

NAYS: _____

THE RESOLUTION WAS DECLARED ADOPTED.

STATE OF MICHIGAN)
)
COUNTY OF WEXFORD)

I, Sandra Wasson, City Clerk of the City of Cadillac, hereby certify this to be a true and complete copy of Resolution No. 2017 - ____, duly adopted at a meeting of the City Council held on the ____ day of _____, 2017.

Sandra Wasson
Cadillac City Clerk